

25STCV18285 25STCV18285

County: los-angeles

Division: Civil Law and Motion

Department: 515

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Case Number: 25STCV18285 Hearing Date: July 7, 2026 Dept: 515

25STCV18285 Palomares v Moreliana, Inc., et al.

Plaintiff's Request for Default Judgment is denied, for the following reasons:

1. The proposed judgment exceeds the demand. The prayer of the First Amended Complaint (FAC) demands \$409,694 in damages, but the proposed judgment awards \$414,596, an excess of \$4,902.

2. Part of the overage is a \$2,500 penalty under Business and Professions Code section 17206, which is recovered only in an action brought in the name of the People by the Attorney General or other specified public prosecutors, not by a private plaintiff (Bus. & Prof. Code, § 17206, subd. (a)). Plaintiff therefore cannot seek this amount of damages.

3. The individual liability of Maria Telma Villagomez is not established for the FEHA and wrongful termination damages. A supervisor who is not herself an employer cannot be held personally liable for discrimination or retaliation under FEHA. (Reno v. Baird (1998) 18 Cal.4th 640, 663). Likewise, wrongful termination in violation of public policy lies only against the employer. (Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 900). Her individual exposure is limited to the wage-and-hour items under Labor Code section 558.1.

4. Additionally, the nonmilitary declaration is potentially defective as to Villagomez. Counsel states he cannot ascertain her date of birth or social security number and cannot conduct a military status search. Where the affidavits leave the court unable to determine whether a

non-appearing defendant is in military service, the Court may require the plaintiff to post a bond before entering judgment (50 U.S.C. § 3931(b)(3)). The decision to require the bond is in the Court's discretion. Counsel must provide further information regarding attempts to ascertain Villagomez's date of birth/social security number so the Court can determine whether Plaintiff has adequately exhausted efforts to determine Villagomez's military status.

5. The discretionary awards lack evidentiary support. No testimony describes the emotional distress underlying the \$300,000 general-damage figure, the \$15,000 medical figure is labeled an estimate and is unsupported by records, and the meal and rest premium claims rest on general characterizations about violations that "routinely," "sometimes" or "more often than not" occurred but Plaintiff calculate damages as if they occurred everyday between July 20, 2024 and March 17, 2025.